

IN THE SUPREME COURT OF BANGLADESH
HIGH COURT DIVISION
(CIVIL REVISIONAL JURISDICTION)

Present:

Mr. Justice Md. Khairul Alam

Civil Revision No. 1251 of 2016

Dilip Kumar Acharjee and another
..... Plaintiff-Appellants-Petitioners.

-Versus-

Paresh Kanti Acharjee and others.
..... Defendant-Respondent-
Opposite parties.

Mr. J.K. Paul, with
Mr. Liton Acharjee, Advocates
..... for the petitioner.

No one appears
..... for the Opposite Parties.

Heard on: 17.10.2022 & 18.10.2022

Judgment on: 19.10.2022.

This Rule was issued calling upon the opposite parties No.1 to show cause as to why the judgment and order dated 09.03.2016 passed by the learned Additional District Judge, Cox's Bazar in Miscellaneous Appeal No.9 of 2013 dismissing the appeal and affirming those dated 12.05.2013 passed by the learned Joint District Judge, Second Court, Cox's Bazar in Other Suit No.67 of 2013 rejecting an application for temporary injunction under Order XXXIX rule 1 and 2 of the Code of Civil Procedure should not be set aside, and/or pass such other or further order or orders as to this court may seem fit and proper.

Relevant facts of disposal of the Rule are that the present petitioners as plaintiff filed Other Suit No.67 of 2013 before the Joint District Judge, Second Court, Cox's Bazar imploding the present opposite

parties as defendant plaintiff for that title and possession over the suit possessing as dirtier in the suit the plaintiff on the basis of advanced possession in the said suit, on 04.03.2013 the plaintiffs filed an application under Order XXXIX Rule 1 and 2 read with section 15 of the Code of Civil Procedure defendant restrained in the defendant from transferring the suit property to anybody till disposal of the suit.

Defendant No.1 contested the said application by filing a written objection denying the material allegations made in the plaint and the application for temporary injunction.

After hearing the parties the learned Joint District Judge, Second Court, Cox's Bazar by the order dated 12.05.2013 rejecting the said application challenging the said order the plaintiffs in Miscellaneous Appeal No. 09 of 2013 before the Court of District Judge, Cox's Bazar. The appeal was subsequently transfer to the Court of Additional District Judge, Cox's Bazar for hence.

The learned Additional District Judge, Cox's Bazar after the hearing said Miscellaneous Appeal by the judgment and order dated 09.03.2016 dismissed the appeal and there by affirming the order passed by the learned Joint District Judge, Second Court, Cox's Bazar rejecting the application for injunction. Being aggrieved there by the petitioner civil revision and obtained the Rule and an order of status-que with regard to the possession of the suit property.

No one appears to oppose the Rule.

From the material on record, it appears that at no point of time the proceeding of other suit No.67 of 2013 of the Court of Joint District Judge, Cox's Bazar hearing stay.

There for, there was no bar to proceed with Other Suit No.67 of 2013 by the learned Joint District Judge, Cox's Bazar for disposal.

On the quarry of the Court Mr. J.K. Paul, the learned Advocate appearing for the petitioner in force the said Other Suit No.67 of 2013 stile pending for disposal.

Heard the learned Advocate for the petitioner, peruse the review applied on others materials on record.

From the record, it appears from is rule was issued on 13.04.2016 and same was ready for hearing on 21.01.2017. But during long period of 5(five) years neither the petitioners nor opposite parties take any stapes for the disposal of the rule. During the long period none of the parties raise in the objection as to the violation order of Status-que.

In view of the above facts and circumstances of the case, I find substance in the above it appears it court that justice would the best served I think ends of Justice would be met best if a direction merit of the rule it the same disposed of.

We the directed of the Joint District Judge, Cox's Bazar disposed of the Other Suit No.67 of 2013 as early as possible it the same is not disposed of.

Accordingly, the Rule is disposed of without any order as to cost.

The learned Joint District Judge, Second Court, Cox's Bazar sits in

the meantime by directed to disposal of the Other Suit No. 67 of 2013 as early as possibly it same is not other was disposal of Parties are directed to maintain status-quo till disposal of the suit .

Send a copy of this judgment to the learned Joint District Judge, Second Court, Cox's Bazar for information and necessary action.